

Land Acquisition (Special Railway Projects) Rules, 2016

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[Rule LAND-ACQUISITION-SPECIAL-RAILWAY-PROJECTS-RULES-2016 of 2016](#)

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[Published vide Notification No. G.S.R. 631 \(E\), 23rd June, 2016](#)

[Ministry of Railways](#)

[\(Railway Board\)](#)

[G.S.R. 631 \(E\). - In exercise of powers conferred by section 20P of the Railways Act, 1989 \(](#)

[24 of 1989](#)

[\), the Central Government hereby makes the following rules, namely:-](#)

[1.](#)

[Short title, commencement and application.](#)

[\(1\)](#)

[These rules may be called the Land Acquisition \(Special Railway Projects\) Rules, 2016.](#)

(2)

They shall come into force on the date of their publication in the Official Gazette.

(3)

These rules shall apply to the acquisition of land for the special railway project under Chapter IVA of the Act.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,

(a)

"Act" means the Railways Act, 1989 (24 of 1989

),

(b)

"section" means section of the Act.

(2)

Words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Appointment of arbitrator.

- The Central Government shall, by the notification, appoint an officer of the rank of a Gazetted Officer of the State Government as Arbitrator for the purposes of sub-section (6) of section 20F.

4.

Manner of depositing amount with competent authority.

(1)

The Central Government shall deposit,-

(a)

the amount referred to in sub-section (1) of section 20H; and

(b)

the amount determined under sub-section (6) of section 20H, with the competent authority.

(2)

Subject to the provisions of section 20H, the competent authority shall deposit the amount received under sub-rule (1) in an account opened by the competent authority in a nationalised bank for acquisition of land under the Act. The Fund shall be under the control of the competent authority and shall be operated by the competent authority jointly with the Account Officer nominated by the Central Government for this purpose.

5.

Maintenance of fund.

(1)

A separate fund shall be maintained in the separate account opened in a nationalised bank by the competent authority for the purpose of section 20M.

(2)

The Fund shall be under the control of the competent authority and shall be operated by the competent authority jointly with the Account Officer nominated by the Central Government for this purpose.

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